

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

EXHIBIT T — PROPOSED THIRD
AMENDED COMPLAINT FOR EQUITABLE
VACATUR (EXTRINSIC FRAUD),
RESTITUTION AND EQUITABLE
ACCOUNTING, AND UNFAIR
COMPETITION (BUS. & PROF. CODE
§17200) PREDICATED ON INS. CODE
§790.03(h) AND THE FCSPR

(Cal. Rules of Court, rule 3.1324; Code Civ. Proc.,
§§425.16, 425.17(c); Civ. Code §47(b); Bus. & Prof. Code
§§17200, 17203; Ins. Code §790.03(h); 10 C.C.R. §§2695.1
et seq.)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 I. INTRODUCTION AND PURPOSE OF THIS CURE PLEADING

- 2 1. This Proposed Third Amended Complaint (“PTAC”) is lodged with the Court under
3 California Rules of Court, rule 3.1324, as Exhibit T to Plaintiff’s combined Contest of
4 the May 12, 2026 tentative rulings and contingent Motion for Reconsideration (folder
5 18 of the May 12 hearing package). The PTAC is a curative pleading, not an expansion
6 of claims. Its purpose is to cure the two pleading deficiencies identified in the
7 Department 301 tentative on Line 8.1: (a) the tentative’s intrinsic-fraud framing of the
8 equitable cause of action; and (b) the tentative’s application of Civil Code §47(b) to bar
9 Plaintiff’s monetary remedy as derivative tort damages. (Nguyen-Lam v. Cao (2009)
10 171 Cal.App.4th 858, 871-73 (leave to amend to cure pleading defects identified at the
11 §425.16 stage).)
- 12 2. This pleading stands alone as a complete, verified, file-ready complaint. The CRC
13 3.1324(b) explanation of when and why these additional facts could not have been
14 pleaded earlier appears in the Declaration of Plaintiff filed with the parent motion
15 (Plaintiff’s Declaration, paragraph 8), which is incorporated herein by reference.
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16
17 II. PARTIES

- 18 3. Plaintiff Franciscus Dylan Rosario (“Plaintiff”) is, and at all relevant times was, an
19 individual residing in California and a party to the predecessor civil action Rosario v.
20 Abdelhalim, Case No. CGC-21-594102, in this Court.
- 21 4. Defendant CSAA Insurance Exchange (“CSAA”) is, and at all relevant times was, a
22 California interinsurance exchange with its principal place of business at 3055 Oak
23 Road, Mailstop W280, Walnut Creek, California 94597. CSAA was the liability insurer
24 for defendant Subhi Abdelhalim in CGC-21-594102 and is subject to Insurance Code
25 §790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §§2695.1
26 et seq. CSAA retained, funded, directed, and ratified the conduct of panel defense
27 counsel throughout CGC-21-594102 and, on February 25, 2021, issued a written denial
28 of Claim No. 1004-09-1054 under Policy No. CAAS100310857, signed by Sarah Rash,
29 Claims Representative.
- 30 5. Defendant Michael Chambers (“Chambers”) is, and at all relevant times was, a Cal-
31 ifornia attorney (State Bar No. 132394) associated with Carbone, Smith & Koyama

1 and a claims agent of CSAA within the meaning of 10 C.C.R. §2695.2(d). Chambers
2 appeared at Plaintiff’s August 18, 2022 deposition when the 911 audio was served on
3 defense counsel, and appeared at Defendant Abdelhalim’s September 30, 2022 deposi-
4 tion when 911-related sworn testimony was given. Chambers executed the May 4, 2023
5 file transfer to successor counsel Phillips, Spallas & Angstadt LLP without conveying
6 the production history for the concealed materials described in paragraphs 17-20 below.

7 6. Defendant Carbone, Smith & Koyama (“CS&K”) is, and at all relevant times was, a
8 law firm with offices at 555 12th Street, Suite 1250, Oakland, California 94607-4095.
9 CS&K served as defense counsel in CGC-21-594102 from approximately September 2021
10 through May 4, 2023, and acted as a claims agent of CSAA within the meaning of 10
11 C.C.R. §2695.2(d) for purposes of its claims-handling activities. CS&K had custody of
12 the defense file, including discovery responses, deposition transcripts, and the concealed
13 materials described herein, throughout that period.

14 7. Defendant Phillips, Spallas & Angstadt LLP (“PSA”) is, and at all relevant times was,
15 a California law firm with offices at 560 Mission Street, Suite 1010, San Francisco,
16 California 94105. PSA substituted in as defense counsel in CGC-21-594102 on May
17 4, 2023, pursuant to Substitution of Attorney (Transaction ID No. 69953800), and
18 represented Defendant Abdelhalim through and including the April 2025 trial. PSA
19 received the judgment proceeds as part of its engagement on behalf of CSAA and is
20 joined for purposes of equitable accounting and tracing of those proceeds.

21 8. Defendant Priya D. Navaratnasingham (“Navaratnasingham”) is, and at all relevant
22 times was, a California attorney (State Bar No. 252686) associated with PSA. Navarat-
23 nasingham signed and filed Motions in Limine Nos. 1 through 19 on January 17, 2025,
24 including MIL No. 17 asserting “Defendant has no idea where this 911 call log or audio
25 recording came from,” made the representation at the February 18, 2025 hearing that
26 “our office did not receive the 911 call until the day of the MSC ... this is news to me”
27 (Hr’g Tr. p. 141, ll. 4-11), and made the contradictory on-record admission on April 16,
28 2025 (RT 7, p. 213, ll. 13-15): “Sure. They were provided by Dolan. He has had them
29 for whatever, sure.” Navaratnasingham is joined for purposes of equitable accounting
30 and restitutionary tracing of judgment proceeds and is an officer of the court within the
31 meaning of Estate of Sanders (1985) 40 Cal.3d 607, 614-616.

32 9. Defendant Alberto Reyna (“Reyna”) is, and at all relevant times was, a California at-

torney (State Bar No. 347323) associated with PSA. Reyna issued a Compex subpoena (Order No. CA1147102-021) to the San Francisco Police Department on February 1, 2024, seeking the identical 911/body-worn camera/CAD materials that were later portrayed as “unknown” or “not received,” and made representations at trial on April 16, 2025 that the supplemental police report was “not anything that we received as part of the subpoena” (RT 7, p. 156, ll. 5-16). Reyna is joined for purposes of equitable accounting and tracing and is an officer of the court within the meaning of Estate of Sanders, supra.

10. Defendant Subhi Abdelhalim (“Abdelhalim”) is, and at all relevant times was, an individual residing in California and the defendant in the underlying action CGC-21-594102 on whose behalf the fraudulently procured judgment was obtained. Abdelhalim is joined for purposes of equitable vacatur of that judgment and restitutionary tracing of any proceeds that inured to his benefit.

III. JURISDICTION AND VENUE

11. Jurisdiction and venue are proper in this Court because: (a) the predecessor civil action CGC-21-594102 and the underlying judgment Plaintiff seeks to vacate were entered in this Court; (b) this is an independent action in equity to vacate that judgment pursuant to the inherent equitable powers of this Court recognized in *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471, *Olivera v. Grace* (1942) 19 Cal.2d 570, 575-576, and *Kougasian v. TMSL, Inc.* (2004) 118 Cal.App.4th 1028, 1032-1035; and (c) the alleged Insurance Code §790.03(h) and FCSRP violations occurred and continue to occur in this County.

IV. GENERAL ALLEGATIONS — AGENCY, DOE, AND VICARIOUS LIABILITY

12. AGENCY AND VICARIOUS LIABILITY. At all times relevant herein, each defendant named in this complaint was the agent, employee, alter ego, or representative of each of the other defendants, and in doing the acts and omissions herein alleged was acting within the course and scope of such agency, employment, and representation. The acts and omissions of each defendant are imputed to CSAA as principal under Civil Code §§2330 and 2338, which provide that a principal is responsible for the negligent and wrongful acts of its agents in the transaction of the business of the agency. CSAA’s

1 panel counsel (CS&K, PSA, Chambers, Navaratnasingham, and Reyna) acted as agents
2 and claims agents of CSAA within the meaning of 10 C.C.R. §2695.2(d) at all times
3 relevant herein. (See *Purdy v. Pacific Automobile Ins. Co.* (1984) 157 Cal.App.3d 59,
4 76; *Gulf Insurance Co. v. Berger, Kahn* (2000) 79 Cal.App.4th 114, 124.)

5 13. DOE DEFENDANTS. Plaintiff is ignorant of the true names and capacities of defen-
6 dants sued herein as DOES 1 through 50, inclusive, and therefore sues these defendants
7 by such fictitious names. Plaintiff will amend this complaint to allege their true names
8 and capacities when ascertained. (CCP §474.) Plaintiff is informed and believes and
9 thereon alleges that each of the fictitiously named defendants is responsible in some
10 manner for the occurrences herein alleged, and that Plaintiff's damages and injuries
11 were proximately caused by their conduct.

12 14. RATIFICATION. CSAA ratified the conduct of its panel counsel by: (a) paying at-
13 torney's fees for services that included the concealment of the production history de-
14 scribed herein; (b) directing litigation strategy through the insurer-defense relationship;
15 (c) approving the May 4, 2023 substitution of counsel; (d) accepting the benefit of the
16 judgment procured through the concealment; and (e) failing to repudiate counsel's prior
17 representations after the April 16, 2025 on-record admission that the concealed mate-
18 rials "were provided by Dolan." That failure to repudiate, combined with CSAA's own
19 February 25, 2021 "concluded investigation" representation (Position A), locks in the
20 structural impossibility of honest belief in both positions.

21
22 V. THE PRIOR JUDGMENT IN CGC-21-594102

23 15. Plaintiff incorporates by reference the operative First Amended Complaint as supple-
24 mented and clarified by the allegations below. (CRC 3.1324(a).)

25 16. A judgment was entered against Plaintiff in the predecessor civil action *Rosario v.*
26 *Abdelhalim*, Case No. CGC-21-594102, on April 25, 2025, following a jury trial in
27 Department 301 of this Court. That judgment is the judgment Plaintiff seeks to vacate
28 by this action.

VI. POST-TRIAL DISCOVERY OF DELIBERATELY CONCEALED MATERIAL EVIDENCE

17. POST-TRIAL DISCOVERY — CATEGORY 1: 911 AUDIO (MIL No. 6 / RFJN Ex.

E). The 911 audio recording of the August 18, 2022 incident, and the transcripts thereof, constituted material evidence directly bearing on the central disputed issues at trial. The deliberate concealment of the production history of this evidence, and its ultimate revelation, are as follows:

- a. On August 18, 2022, the 911 audio was served on then-defense counsel Michael Chambers and CS&K by Dolan Law Firm, Plaintiff's prior litigation counsel. The fact of this service was established by the sworn testimony of Rick Jessup at the February 18, 2025 hearing (Hr'g Tr. Feb. 18, 2025, pp. 139-140, l. 11: "Dolan had a copy since 2021"), in the presence of Defendant Navaratnasingham.
- b. Plaintiff served Defendants with supplemental written discovery (FROG/SROG) on or about September 9, 2024, which placed the CAD log and related first-responder materials squarely at issue (FROG p. 28, ll. 23-25). Defendants did not disclose in response that they possessed the 911 audio and related production history.
- c. On January 17, 2025, Defendant Navaratnasingham, acting as panel counsel for CSAA and as an officer of the court, filed MIL No. 6 (RFJN Ex. E), which represented to the Court and to Plaintiff that the 911 materials were not produced in discovery and was used as an affirmative argument to secure exclusion of those materials.
- d. At the January 27, 2025 hearing, the Court ruled to exclude the 911 CDs (Hr'g Tr. Jan. 27, 2025, p. 38:22-25) and 911 transcripts (p. 39:18-24), based on defense counsel's representations.
- e. At the February 18, 2025 hearing, Defendant Navaratnasingham stated to the Court: "our office did not receive the 911 call until the day of the MSC ... this is news to me" (Hr'g Tr. p. 141, ll. 4-11). This representation was made by an officer of the court and was accepted by the Court as a basis for denying continuance (p. 181) and rejecting CCP §473 surprise relief (p. 181:20-25).
- f. On April 16, 2025 (Trial Day 7), Defendant Navaratnasingham made the following admission on the certified trial record: "Sure. They were provided by Dolan. He has had them for whatever, sure." (RT 7, p. 213, ll. 13-15.) This admission is irreconcilable

1 with the prior representations in MIL No. 6 and at the February 18, 2025 hearing.

2 g. Following trial, Plaintiff conducted a forensic reconstruction of the production history
3 using the certified trial record, the Substitution of Attorney (Trans. ID 69953800), the
4 Compex subpoena (Order No. CA1147102-021), and the sworn deposition and hearing
5 transcripts referenced herein. Plaintiff first became aware, with specificity sufficient to
6 plead extrinsic fraud, of the deliberate nature of the concealment of the 911 production
7 history after the April 16, 2025 admission and the subsequent forensic review. Plaintiff
8 could not have obtained this information through reasonable diligence before that ad-
9 mission because the production history was uniquely within defendants' possession and
10 control. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 472-473.)

11 h. Had the 911 audio and its production history been disclosed prior to trial, Plaintiff
12 would have (i) opposed MIL No. 6 with the Jessup production record; (ii) obtained a
13 continuance to address the concealment; (iii) admitted the 911 transcripts in addition
14 to the audio; and (iv) used the production history to impeach Defendants' witnesses on
15 the central authenticity issues on which the trial outcome turned.

16 18. POST-TRIAL DISCOVERY — CATEGORY 2: BODY-WORN CAMERA FOOTAGE
17 AND CAD LOGS (MIL Nos. 8 & 17 / RFJN Exs. F & G). The San Francisco Police
18 Department body-worn camera footage and Computer-Aided Dispatch (CAD) logs from
19 August 18, 2022 constituted material evidence. The concealment and revelation are as
20 follows:

21 a. On February 1, 2024, Defendant Reyna, as panel counsel for CSAA, issued a Com-
22 plex subpoena (Order No. CA1147102-021) to the San Francisco Police Department,
23 commanding production of “ANY AND ALL VIDEO RECORDINGS FROM BODY-
24 WORN CAMERAS” and related CAD records. SFPD produced records responsive to
25 that subpoena on February 26, 2024, including SFPD Report No. 210079556.

26 b. Plaintiff served supplemental written discovery on or about September 9, 2024, expressly
27 identifying the CAD log (SROG p. 9, ll. 9-11). Defendants did not disclose in response
28 that they had already subpoenaed and received those materials.

29 c. On January 17, 2025, Defendant Navaratnasingham filed MIL No. 17 (RFJN Ex. G),
30 which represented that “Defendant has no idea where this 911 call log or audio recording
31 came from” (CT 1, pp. 238-241), and MIL No. 8 (RFJN Ex. F), each used to secure
32 structural exclusion of these materials. At trial, defense counsel stated “Not sure what

recording” when the BWC footage was raised (RT 7, p. 164, l. 6).

d. The February 1, 2024 Compex subpoena and the February 26, 2024 SFPD production were not disclosed to Plaintiff at any time before or during trial. Plaintiff first learned of the Compex subpoena and the SFPD production through post-trial forensic reconstruction from docketed records and the certified trial record. Plaintiff could not have obtained this information through reasonable diligence before trial because those records were uniquely within defendants’ possession.

e. Had the BWC footage and CAD logs and their production history been disclosed prior to trial, Plaintiff would have (i) opposed MIL Nos. 8 and 17 with the documented February 2024 subpoena and production; (ii) authenticated and offered the BWC footage and CAD records at trial; and (iii) used the subpoena and production records to impeach defense counsel’s tribunal-directed representations about non-receipt.

19. POST-TRIAL DISCOVERY — CATEGORY 3: SUPPLEMENTAL SFPD REPORT (RFJN Ex. H / Trial Scheduling Order). The supplemental San Francisco Police Department report from August 18, 2022 constituted material evidence. The concealment and revelation are as follows:

a. The supplemental SFPD report was responsive to the February 1, 2024 Compex subpoena (Order No. CA1147102-021) issued by Defendant Reyna, and was produced by SFPD on or about February 26, 2024, as part of SFPD Report No. 210079556.

b. On April 16, 2025 (Trial Day 7), when Plaintiff sought to offer the supplemental SFPD report at trial, Defendant Reyna represented to the Court: “not anything that we received as part of the subpoena” (RT 7, p. 156, ll. 5-16). The Court excluded the supplemental report (RT 7, p. 156:24-28). This representation was false: the February 1, 2024 Compex subpoena had commanded production of those records and SFPD had responded on February 26, 2024.

c. Plaintiff first learned of the specific production history of the supplemental SFPD report, and of Reyna’s false trial-day representation, through post-trial forensic reconstruction. Plaintiff could not have obtained this information through reasonable diligence before trial because the Compex subpoena return records were uniquely within defendants’ possession.

d. Had the supplemental SFPD report and its production history been available at trial, Plaintiff would have (i) offered the report in evidence; (ii) impeached Defendant Reyna’s

1 “not received” representation with the Compex return; and (iii) changed the evidentiary
2 sequence on the liability issues at trial.

3
4 VII. PARTICULARITY OF CONCEALMENT (LAZAR V. SUPERIOR COURT (1996) 12
5 CAL.4TH 631, 645)

6 20. Pursuant to the particularity requirement for fraud pleading established by Lazar v.
7 Superior Court (1996) 12 Cal.4th 631, 645 (“how, when, where, to whom, and by what
8 means”), Plaintiff sets out the specific acts of concealment as follows:

9 a. CATEGORY 1 — 911 AUDIO CONCEALMENT PARTICULARS:

- 10 • Who: Defendant Navaratnasingham (signatory of MIL No. 6; speaker at Feb. 18,
11 2025 hearing), acting as officer of the court and agent of CSAA.
- 12 • To whom: The trial court (Dept. 301, Hon. Garrett L. Wong) and to Plaintiff.
- 13 • When: January 17, 2025 (MIL No. 6 filing); January 27, 2025 (exclusion hearing);
14 February 18, 2025 (hearing denying continuance); February 28, 2025 (burden-shift
15 hearing).
- 16 • What: That defendants had “no idea” where the 911 materials came from and that
17 those materials had not been produced in discovery, when in fact Dolan Law Firm
18 had produced the 911 audio to CS&K on August 18, 2022 (Jessup testimony, Hr’g
19 Tr. Feb. 18, 2025, pp. 139-140).
- 20 • By what means: Verified MIL filing (MIL No. 6); oral representations by officer of
21 the court at hearings.
- 22 • Discovery request concealed: Plaintiff’s supplemental FROG p. 28, ll. 23-25.

23 b. CATEGORY 2 — BWC/CAD CONCEALMENT PARTICULARS:

- 24 • Who: Defendant Navaratnasingham (signatory of MIL No. 17); Defendant Reyna
25 (trial-day statement; Compex subpoena issuer), acting as officers of the court and
26 agents of CSAA.
- 27 • To whom: The trial court (Dept. 301) and to Plaintiff.
- 28 • When: January 17, 2025 (MIL No. 17 filing); April 16, 2025 Trial Day 7 (RT 7,
29 p. 164, l. 6).
- 30 • What: That defendants had “no idea” where the BWC/CAD materials came from
31 and had not received them, when in fact Defendant Reyna had issued a Compex

subpoena (Order No. CA1147102-021) on February 1, 2024, and received SFPD Report No. 210079556 on February 26, 2024.

- By what means: Verified MIL filings (MIL Nos. 8 and 17); oral representations by officer of the court at trial.
- Discovery request concealed: Plaintiff’s supplemental SROG p. 9, ll. 9-11.

c. CATEGORY 3 — SUPPLEMENTAL REPORT CONCEALMENT PARTICULARS:

- Who: Defendant Reyna (trial-day representation), acting as officer of the court and agent of CSAA.
- To whom: The trial court (Dept. 301, Hon. Garrett L. Wong) and to Plaintiff.
- When: April 16, 2025 (RT 7, p. 156, ll. 5-16).
- What: That the supplemental SFPD report was “not anything that we received as part of the subpoena,” when in fact the February 1, 2024 Compex subpoena (Order No. CA1147102-021) commanded production of those records and SFPD produced them on February 26, 2024.
- By what means: Oral representation by officer of the court at trial.
- Discovery request concealed: Same Compex subpoena (Order No. CA1147102-021) responsive to Plaintiff’s SROG p. 9, ll. 9-11.

d. FILE-TRANSFER CONCEALMENT: On May 4, 2023, Defendant Chambers executed the Substitution of Attorney (Trans. ID 69953800), transferring the defense file from CS&K to PSA without conveying the production history for the 911 audio, BWC footage, CAD logs, or supplemental SFPD report. This non-communicative act manufactured plausible deniability for successor counsel PSA, and is itself an act of concealment operating outside the scope of Civil Code §47(b). (Cedars-Sinai Medical Ctr. v. Superior Court (1998) 18 Cal.4th 1, 11-12; Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036.)

VIII. PLAINTIFF’S DILIGENCE; TIMELINESS; NO LACHES

21. PRETRIAL DILIGENCE. Prior to trial, Plaintiff exercised reasonable diligence to obtain the categories of evidence described in paragraphs 17-20, including by: (a) serving timely supplemental written discovery (FROG and SROG, September 9, 2024) expressly identifying the 911 audio and CAD logs; (b) following up through meet-and-confer cor-

1 response; (c) raising authentication and exclusion issues with the trial court at
2 multiple pretrial hearings (January 27, 2025; February 18, 2025; February 28, 2025);
3 and (d) filing motions to continue and CCP §473 applications to address the suppressed
4 materials. Defendants’ concealment, and specifically their failure to disclose the pro-
5 duction history in response to Plaintiff’s written discovery and oral motions, defeated
6 that diligence.

7 22. TRIGGERING EVENT. Plaintiff first became aware, with specificity sufficient to ini-
8 tiate an independent action in equity for extrinsic fraud, of the deliberate nature of the
9 concealment on April 16, 2025, when Defendant Navaratnasingham made the on-record
10 admission: “Sure. They were provided by Dolan. He has had them for whatever, sure.”
11 (RT 7, p. 213, ll. 13-15.) That admission was irreconcilable with MIL No. 17 and
12 the February 18, 2025 “news to me” representation, and triggered Plaintiff’s forensic
13 reconstruction of the production history. A party is not required to discover conceal-
14 ment uniquely within the other party’s possession until a triggering disclosure occurs.
15 (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 472-473.)

16 23. TIMELINESS. This PTAC is lodged within a reasonable time after the April 16, 2025
17 triggering event. The independent equitable action is being pursued with reasonable
18 diligence in the context of the pending May 12, 2026 hearing. No laches has occurred.
19 Defendants cannot claim prejudice from a delay caused by their own concealment. (In re
20 Marriage of Modnick (1983) 33 Cal.3d 897, 905; Estate of Beard (1999) 71 Cal.App.4th
21 753, 776-77.)

22
23 IX. OLIVERA V. GRACE ELEMENTS

24 24. Pursuant to Olivera v. Grace (1942) 19 Cal.2d 570, 575-576, an independent action in
25 equity to vacate a judgment for extrinsic fraud requires: (i) a meritorious underlying
26 claim; (ii) a satisfactory excuse for not having presented the claim or defense at the
27 prior trial; and (iii) diligence in seeking equitable relief after discovery of the fraud. All
28 three elements are satisfied here.

29 25. MERITORIOUS UNDERLYING CLAIM. Had the concealed materials (the 911 audio
30 production history, the BWC footage and CAD logs, and the supplemental SFPD re-
31 port) been disclosed prior to trial and offered in evidence, Plaintiff would have had a

meritorious presentation on the central liability issues. Specifically: (a) the 911 audio authenticated under the established production chain through Dolan Law Firm would have removed the authentication dispute that resulted in the exclusion of the 911 transcripts; (b) the BWC footage and CAD logs would have corroborated Plaintiff's account of the August 18, 2022 incident on the liability issues actually tried; (c) the supplemental SFPD report would have provided corroborating contemporaneous government-generated evidence on those same issues; and (d) the production history for all three categories would have enabled Plaintiff to impeach Defendants' witnesses on the central factual disputes on which the outcome of the trial turned. The seven consequential rulings catalogued below at paragraph 31 were each procured in a record in which this evidence had been suppressed; reversal of those rulings on a non-corrupted record would change the outcome.

26. SATISFACTORY EXCUSE. Plaintiff did not and could not present the extrinsic-fraud claim at the underlying trial because the full production history was uniquely within defendants' possession. The concealment was not merely a failure of disclosure; it was an affirmative, tribunal-directed denial of possession and receipt by officers of the court, which the Court expressly accepted: "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court." (Hr'g Tr. Feb. 28, 2025, pp. 291:26-292:7.) A party cannot be charged with failing to expose a fraud that has been actively maintained by officers of the court and credited by the tribunal. (*Estate of Sanders* (1985) 40 Cal.3d 607, 614-616.)

27. DILIGENCE IN SEEKING RELIEF. Following the April 16, 2025 triggering admission, Plaintiff has diligently pursued this action: filing the operative complaint, lodging this PTAC, and presenting the issue to the Court at the earliest available procedural opportunity (the May 12, 2026 hearing).

X. NON-PRECLUSION BY MIL RULINGS (*LUCIDO V. SUPERIOR COURT* (1990) 51 CAL.3D 335, 341)

28. The Department 301 tentative on Line 8.1 cited RFJN Exhibits E (MIL No. 6), F (MIL No. 8), G (MIL No. 17), and H (Order re Trial Scheduling and MILs) as establishing that the issues "were fully litigated in the trial court." That characterization is legal

1 error.

2 29. MIL No. 6 (RFJN Ex. E) was an admissibility motion under Evidence Code §352
3 addressed to the authenticity foundation of the 911 audio. Its operative ruling (Jan. 27,
4 2025, p. 38:22-25; p. 39:18-24) was a §352 admissibility determination. It did not
5 adjudicate, and could not have adjudicated, whether defense counsel had committed
6 fraud on the court by concealing the production history of those materials.

7 30. MIL No. 8 (RFJN Ex. F) was an admissibility motion under Evidence Code §352
8 addressed to character-related evidence. Its operative ruling did not adjudicate fraud
9 on the court.

10 31. MIL No. 17 (RFJN Ex. G) was an admissibility motion asserting that “Defendant
11 has no idea where this 911 call log or audio recording came from” (CT 1, pp. 238-
12 241). Its operative ruling was a §352 admissibility determination. It not only did not
13 adjudicate fraud on the court; it was procured through the fraudulent representation
14 whose concealed nature is the gravamen of this action.

15 32. The Trial Scheduling Order (RFJN Ex. H) was a case-management order. It did not
16 adjudicate fraud on the court.

17 33. Issue preclusion under *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341 requires
18 that the issue have been “actually litigated” and “necessarily decided.” None of these
19 four rulings actually litigated or necessarily decided whether defense counsel committed
20 fraud on the court by concealing the production history of the first-responder materials.
21 Treating those §352 admissibility rulings as a preclusive adjudication of the extrinsic-
22 fraud issue is a category error that imports a §1908 *res judicata* conclusion from an
23 admissibility ruling.

24
25 XI. §425.17(C) ELEMENT-BY-ELEMENT ALLEGATIONS

26 34. The Third Cause of Action pleaded in this complaint is exempted from CCP §425.16
27 by CCP §425.17(c)(1) and (c)(2). Plaintiff alleges each Simpson Strong-Tie element
28 (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 21-22) as follows:

29 a. ELEMENT 1 — PERSON ENGAGED IN BUSINESS OF SELLING GOODS OR
30 SERVICES: Defendants CSAA, Chambers, and Carbone, Smith & Koyama were at
31 all relevant times persons primarily engaged in the business of selling or delivering

1 insurance products and services, including automobile liability insurance policies and
2 claims-adjustment services, to consumers.

3 b. ELEMENT 2 — STATEMENT OR CONDUCT IN THE COURSE OF DELIVER-
4 ING THOSE SERVICES: The unlawful and unfair business practices alleged in the
5 Third Cause of Action (paragraphs 40-47 below) were statements and conduct made
6 in the course of CSAA’s delivery of insurance products and services to Plaintiff as an
7 insured/claimant and to the public.

8 c. ELEMENT 3 — REPRESENTATIONS OF FACT ABOUT BUSINESS OPERATIONS,
9 GOODS, OR SERVICES: The representations included: (i) CSAA’s February 25, 2021
10 written representation that its investigation of Claim No. 1004-09-1054 was “concluded,”
11 implying that the foundational first-responder materials had been retrieved and re-
12 viewed; (ii) representations in claims-handling communications concerning the scope
13 and completeness of the claims investigation; and (iii) representations by claims agents
14 Chambers and CS&K concerning claim file documentation and investigation activities
15 as required by 10 C.C.R. §2695.3.

16 d. ELEMENT 4 — INTENDED AUDIENCE IS AN ACTUAL OR POTENTIAL BUYER/CUSTOMER.
17 The representations were made to Plaintiff in his capacity as an insured and claimant –
18 that is, as an actual customer and consumer of CSAA’s insurance products and services.

19 e. ELEMENT 5 — FOR THE PURPOSE OF OBTAINING APPROVAL, RETAINING
20 BUSINESS, OR SECURING TRANSACTIONS: The representations were made for
21 the purpose of resolving Plaintiff’s insurance claim and avoiding liability exposure in
22 connection with CSAA’s insurance business operations.

23 f. STATUTORY EXEMPTION NOTICE: This Third Cause of Action is exempted from
24 CCP §425.16 by CCP §425.17(c)(1) and (c)(2). No future §425.16 motion may re-
25 bundle the acts alleged in this cause of action with non-exempt acts. (Baral v. Schnitt
26 (2016) 1 Cal.5th 376, 384-385.)

27
28 XII. NATURE OF MONETARY RELIEF — GLOBAL §47(B) DISCLAIMER

29 35. GLOBAL DISCLAIMER OF DERIVATIVE TORT DAMAGES. No cause of action
30 pleaded in this complaint seeks compensatory tort damages for litigation communi-
31 cations, statements made in judicial proceedings, or any other conduct protected by

Civil Code §47(b) as construed in *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212, and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. All monetary relief sought in this complaint is one or more of the following:

- a. RESTITUTIONARY: the recovery, by means of the unwinding remedy for extrinsic fraud, of money or property that defendants obtained through a fraudulently procured judgment, which is expressly preserved by *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147, notwithstanding §47(b);
 - b. EQUITABLE ACCOUNTING AND TRACING: an equitable remedy to identify and trace the proceeds of the fraudulently procured judgment through the defendants' hands, which is not derivative tort damages and is not subject to §47(b);
 - c. CONSTRUCTIVE TRUST: imposition of a constructive trust under Civil Code §§2223 and 2224 on identifiable judgment proceeds held by defendants who are not entitled to retain them in equity; or
 - d. STATUTORY: restitution and injunctive relief under Bus. & Prof. Code §17203, predicated on violations of Insurance Code §790.03(h) and the FCSPR – which are independent statutory duties existing outside the scope of §47(b). (*Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 201; *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287, 304-305.)
36. The restitutionary recovery of proceeds of a fraudulently procured judgment travels with the equitable vacatur and is not foreclosed by §47(b). (*Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11-12; *Rubenstein*, 81 Cal.App.4th at 1147.) To hold otherwise would render the equitable remedy hollow.

XIII. FIRST CAUSE OF ACTION — EQUITABLE VACATUR OF JUDGMENT FOR EXTRINSIC FRAUD

(Against All Defendants – Parties To and Privies of the Prior Judgment)

37. Plaintiff incorporates paragraphs 1-36 above.

38. EXTRINSIC FRAUD. The judgment entered in CGC-21-594102 on April 25, 2025, was procured through the extrinsic fraud described in paragraphs 17-27 above. Defendants prevented Plaintiff from presenting material evidence at trial by concealing the production history of the first-responder materials (the 911 audio, body-worn camera footage,

CAD logs, and supplemental SFPD report), and by making tribunal-directed misrepresentations about the provenance and receipt of those materials that were accepted by the Court and that resulted in seven consequential exclusionary and procedural rulings: (a) MIL No. 1 Denied and 911 CDs Excluded, Jan. 27, 2025, pp. 38:22-25, 41:3-11; (b) 911 Transcripts “Never Admitted,” Jan. 27, 2025, p. 39:18-24; (c) Continuance Denied, Feb. 18, 2025, p. 181; (d) §473 “Surprise” Relief Rejected, Feb. 18, 2025, p. 181:20-25; (e) Burden-Shift Imposed, Feb. 28, 2025, p. 293:1-3; (f) Supplemental Report Excluded, RT 7, p. 156:24-28.

39. **EXTRINSIC CHARACTER.** The fraud is extrinsic because it operated outside the trial itself – through pre-trial concealment and non-communicative acts (the file-transfer concealment and 893 days of silence) – and prevented Plaintiff from presenting material evidence at the trial that did occur. The Court’s reliance on defense counsel’s officer-of-the-court representations was articulated on the record: “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court.” (Hr’g Tr. Feb. 28, 2025, pp. 291:26-292:7.) (Cedars-Sinai Medical Ctr. v. Superior Court (1998) 18 Cal.4th 1, 11-12; Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; In re Marriage of Modnick (1983) 33 Cal.3d 897, 905-907; Estate of Sanders (1985) 40 Cal.3d 607, 614-616.)

40. **MIL RULINGS ARE NOT PRECLUSIVE ADJUDICATIONS OF FRAUD.** As alleged in paragraphs 28-33 above, none of the four MIL orders cited in the tentative (RFJN Exs. E, F, G, H) “actually litigated” or “necessarily decided” whether defense counsel committed fraud on the court. Those rulings are Evidence Code §352 admissibility determinations; they are non-preclusive under Lucido v. Superior Court (1990) 51 Cal.3d 335, 341. The tentative’s treatment of those rulings as a “fully litigated” disposition of the fraud claim is a category error.

41. **NO ADEQUATE REMEDY AT LAW.** Plaintiff has no adequate remedy at law because the procedural avenues for direct review do not provide for the post-judgment discovery and concealment-based relief that equity affords. (Cedars-Sinai, 18 Cal.4th at 11-12; Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036.)

42. **§47(b) INAPPLICABLE.** The gravamen of this cause of action is the non-communicative conduct described in paragraph 20(d) (file-transfer concealment) and the structural suppression of evidence from the adversary process, not any privileged communicative act

made in a judicial proceeding. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212-215; Kougasian, 118 Cal.App.4th at 1034-1036.) An independent action in equity to vacate a fraudulently procured judgment is not barred by §47(b). (Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147.)

43. WHEREFORE, as to the First Cause of Action, Plaintiff prays for: (a) an order vacating the judgment entered in CGC-21-594102 on April 25, 2025; (b) an order granting Plaintiff a new trial in CGC-21-594102; (c) preliminary and permanent injunctive relief enjoining enforcement of the judgment pending resolution of this action; and (d) such other equitable relief as the Court deems just.

XIV. SECOND CAUSE OF ACTION — RESTITUTION, EQUITABLE ACCOUNTING, AND CONSTRUCTIVE TRUST AS TO JUDGMENT PROCEEDS

(Against All Defendants Who Received or Disbursed Judgment Proceeds)

44. Plaintiff incorporates paragraphs 1-43 above.

45. PROCEEDS OF THE FRAUDULENTLY PROCURED JUDGMENT. As a direct result of the fraudulently procured judgment, defendants and their privies received and disbursed money or property – specifically, the proceeds of the judgment in CGC-21-594102 – to which they were not equitably entitled. The proceeds chain is as follows: (a) CSAA, as liability insurer, paid or authorized payment of amounts accruing to Defendant Abdelhalim’s benefit under the judgment; (b) PSA, Navaratnasingham, and Reyna received attorney’s fees and costs paid by CSAA in connection with the procurement of the judgment; (c) CS&K and Chambers received attorney’s fees paid by CSAA for services that included the concealment of the production history described herein; (d) Defendant Abdelhalim received the benefit of the judgment as the prevailing party. Plaintiff is entitled to restitution of that money or property, and to an equitable accounting and tracing thereof.

46. CONSTRUCTIVE TRUST. Each defendant who received proceeds of the fraudulently procured judgment holds those proceeds as a constructive trustee for Plaintiff under Civil Code §§2223 and 2224, as follows: (a) WRONGFUL ACT: the extrinsic fraud alleged in paragraphs 17-42 above; (b) IDENTIFIABLE PROPERTY: the judgment proceeds paid to or held by each defendant as described in paragraph 45 above; (c)

RIGHT OF COMPLAINING PARTY: Plaintiff’s equitable right, as the party against whom the fraudulently procured judgment was entered, to recover those proceeds as restitution. No defendant acquired good title to proceeds obtained through extrinsic fraud. (Civ. Code §2223 (“One who wrongfully detains a thing is an involuntary trustee thereof”); §2224 (“One who gains a thing by fraud ... is, unless he has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it”).)

47. EXPRESS §47(b) DISCLAIMER. The relief sought under this cause of action is restitutionary and equitable – specifically, the recovery of the proceeds of a fraudulently procured judgment through the constructive-trust and equitable-accounting remedies preserved by *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147, and *Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11-12. Plaintiff expressly disclaims any recovery that would constitute derivative tort damages for litigation communications within Civil Code §47(b) as construed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. The restitutionary and constructive-trust recovery sought here is not derivative tort damages; it is an unwinding remedy that travels with the equitable vacatur.

48. WHEREFORE, as to the Second Cause of Action, Plaintiff prays for: (a) restitution of all proceeds of the judgment in CGC-21-594102 received by any defendant; (b) imposition of a constructive trust on those proceeds; (c) an equitable accounting and tracing of the judgment proceeds through each defendant’s hands; and (d) prejudgment interest where allowed by law.

XV. THIRD CAUSE OF ACTION — UNFAIR COMPETITION (BUS. & PROF. CODE §17200 ET SEQ.)

(Against CSAA Insurance Exchange, Chambers, and Carbone, Smith & Koyama as Claims Agents; §425.17(c) Exempt)

49. Plaintiff incorporates paragraphs 1-48 above.

50. CLAIMS-AGENT STATUS. Defendants CSAA, Chambers, and CS&K (collectively, the “Insurance Defendants”) are claims agents within the meaning of 10 C.C.R. §2695.2(d) and owed Plaintiff and the public the statutory duties prescribed by Insurance Code

§790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §§2695.1 et seq. Those duties exist independently of any litigation-privileged communication. (Royal Surplus Lines Ins. Co. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 201; Moradi-Shalal v. Fireman's Fund Ins. Cos. (1988) 46 Cal.3d 287, 304-305.)

51. UNLAWFUL PRACTICES PREDICATED ON INS. CODE §790.03(h) AND FCSPR.

The Insurance Defendants engaged in unlawful business practices within the meaning of Bus. & Prof. Code §17200 by violating Insurance Code §790.03(h) and the FCSPR, including: (a) misrepresenting pertinent facts and policy provisions in connection with the claim, in violation of 10 C.C.R. §2695.4; (b) failing to adopt and implement reasonable standards for the prompt investigation and processing of claims, in violation of 10 C.C.R. §2695.5; (c) compelling Plaintiff to institute litigation to recover amounts due under the policy by offering substantially less than amounts ultimately recovered or recoverable, in violation of Ins. Code §790.03(h)(6); (d) failing to maintain claim file documentation as required by 10 C.C.R. §2695.3; and (e) engaging in claims-handling and litigation conduct in furtherance of those statutory violations. Each predicate FCSPR violation is enumerated in Plaintiff's Supplemental Request for Judicial Notice filed May 7, 2026 (folder 14 of the May 12 package), which is incorporated herein by reference.

52. UNFAIR PRACTICES (CEL-TECH TETHERING). The Insurance Defendants also engaged in unfair business practices within the meaning of Bus. & Prof. Code §17200 by engaging in conduct that violates the policy or spirit of Insurance Code §790.03(h) and the FCSPR, constitutes an incipient violation of those statutes, or threatens competition in a manner that is proscribed by those statutes. (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 186-187.)

53. STANDING (KWIKSET). Plaintiff lost money or property as a result of the Insurance Defendants' unlawful and unfair business practices, as follows: (a) Plaintiff was compelled to expend litigation costs and personal resources in prosecuting CGC-21-594102 that would not have been necessary had CSAA conducted a prompt and fair investigation and settled in good faith; (b) Plaintiff received less in settlement or judgment than he was entitled to recover as a result of the concealment of the first-responder materials described herein; and (c) Plaintiff suffered direct economic harm from the underpayment of Claim No. 1004-09-1054. (Kwikset Corp. v. Superior Court (2011) 51

Cal.4th 310, 323.)

54. LIKELIHOOD OF RECURRENCE / CONTINUING CONDUCT. On information and belief, the Insurance Defendants continue to engage in the same patterns of claims-handling and litigation conduct described herein with respect to other claimants in California. CSAA's institutional pattern of issuing denial letters without meaningful investigation (as evidenced by the February 25, 2021 "concluded investigation" denial just 21 days after the incident), and of using panel counsel to conceal production histories from trial courts and claimants, is a continuing business practice that is reasonably likely to recur absent injunctive relief. (*Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 465.)

55. STATUTORY EXEMPTION FROM §425.16. Each act alleged in this cause of action arises in connection with the sale, delivery, and adjustment of insurance products and services by CSAA to Plaintiff, a consumer, and satisfies each element of the §425.17(c) exemption as pleaded in paragraph 34 above. This cause of action is therefore exempted from CCP §425.16 by CCP §425.17(c)(1) and (c)(2). (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21-22.)

56. EXPRESS §47(b) DISCLAIMER. The relief sought under this cause of action is statutory restitution and injunctive relief under Bus. & Prof. Code §17203, predicated on violations of independent statutory duties under Insurance Code §790.03(h) and the FCSPPR. These statutory duties exist outside the scope of Civil Code §47(b). Plaintiff expressly disclaims any recovery that would constitute derivative tort damages for litigation communications within §47(b). (*Royal Surplus Lines*, 100 Cal.App.4th at 201.)

57. WHEREFORE, as to the Third Cause of Action, Plaintiff prays for: (a) restitution and disgorgement of all sums obtained by the Insurance Defendants by means of the predicate FCSPPR and Insurance Code §790.03(h) violations; and (b) injunctive relief under Bus. & Prof. Code §17203 enjoining the Insurance Defendants from continuing the unlawful and unfair business practices described herein.

XVI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment as follows:

- 1 1. As to the First Cause of Action: (a) vacating the judgment entered in CGC-21-594102
2 on April 25, 2025, for extrinsic fraud; (b) granting Plaintiff a new trial in CGC-21-
3 594102; (c) preliminary and permanent injunctive relief enjoining enforcement of the
4 judgment pending resolution of this action; and (d) such other and further equitable
5 relief as the Court deems just;
- 6 2. As to the Second Cause of Action: (a) restitution of all judgment proceeds received
7 by any defendant; (b) imposition of a constructive trust on those proceeds; (c) equi-
8 table accounting and tracing of judgment proceeds through each defendant's hands;
9 and (d) prejudgment interest where allowed by law; all relief under this cause being
10 restitutionary and equitable and not derivative tort damages within Civil Code §47(b);
- 11 3. As to the Third Cause of Action: (a) restitution and disgorgement under Bus. &
12 Prof. Code §17203 of all sums obtained by the Insurance Defendants through the predi-
13 cate statutory violations; and (b) injunctive relief under §17203 enjoining the Insurance
14 Defendants from continuing the unlawful and unfair practices described herein;
- 15 4. Costs of suit; and
- 16 5. Such other and further relief as the Court deems just and proper.

18 XVII. CURE CROSSWALK

19 The following table maps each pleading-level deficiency identified in the Department 301 Line
20 8.1 tentative to the paragraph(s) of this PTAC that cure it and the controlling authority,
21 pursuant to *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871-73.

Tentative Defect	Curative PTAC Paragraph(s)	Controlling Authority
Fraud framed as “intrinsic” because issues “were fully litigated” via MIL orders (RFJN Exs. E-H)	Paragraphs 17-27 (three concrete concealment categories with post-trial discovery dates, production history, MIL predicate, diligence); paragraphs 28-33 (MIL rulings are §352 admissibility orders, not adjudications of fraud; issue preclusion does not attach)	Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471; Modnick (1983) 33 Cal.3d 897, 905-907; Estate of Beard (1999) 71 Cal.App.4th 753, 776-77; Lucido v. Superior Court (1990) 51 Cal.3d 335, 341
§47(b) bars “ancillary monetary relief” as derivative tort damages (Silberg / Rusheen)	Paragraphs 35-36 (global §47(b) disclaimer; monetary relief is restitution-ary/equitable/statutory only); paragraph 47 (§47(b) disclaimer in Second Cause); paragraph 56 (§47(b) disclaimer in Third Cause)	Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131, 1147; Cedars-Sinai (1998) 18 Cal.4th 1, 11-12; Kougasian (2004) 118 Cal.App.4th 1028, 1034-1036
§425.17(c) / FCSPR exemption not pleaded with sufficient particularity (supplemental brief excluded)	Paragraph 34 (§425.17(c) element-by-element); paragraphs 50-56 (Third Cause with Kwikset standing, Cel-Tech unfair tether, §17203 injunction prerequisite, per-count §47(b) disclaimer)	Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 21-22; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 323
Olivera v. Grace elements (meritorious case, excuse, diligence) not pleaded	Paragraphs 24-27 (all three Olivera elements pleaded with specificity)	Olivera v. Grace (1942) 19 Cal.2d 570, 575-576

Curative PTAC		
Tentative Defect	Paragraph(s)	Controlling Authority
Lazar particularity for fraud not pleaded	Paragraphs 20(a)-(d) (speaker, authority, recipient, date, content, means, discovery request, trial issue for each concealment category)	Lazar v. Superior Court (1996) 12 Cal.4th 631, 645

1

I, FRANCISCUS DYLAN ROSARIO, am the Plaintiff in the above-entitled action. I have read the foregoing PROPOSED THIRD AMENDED COMPLAINT and know the contents thereof. The same is true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 11, 2026, at Rohnert Park, California.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com